

**TENTATIVE RULINGS
DEPARTMENT C11 - LAW AND MOTION CALENDAR**

Judge Jonathan Fish

August 3, 2026

LAW AND MOTION IS HEARD ON MONDAYS AT 1:30 P.M.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it must provide a court reporter. Parties must comply with the Court's policy on the use of privately-retained court reporters, which can be found at:

- [Civil Court Reporter Pooling](#);
- Please see the Court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative Rulings: The Court endeavors to post tentative rulings on the Court's website by 5 p.m. on the preceding Friday. Do NOT call the Department for a tentative ruling if none is posted. Tentative rulings may not be posted on every case – or may be posted the morning of the hearing – due to the Court's other commitments or the nature of a particular motion. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on tentative rulings: If **all** counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5211. Please do not call the Department unless **all** parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature, if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Remote and In-Person Proceedings. Parties are referred to the Court's "Appearance Procedures and Information – Civil Unlimited and Complex" and "Guidelines for Remote Appearances" available on the Public Website.

#	Case Name	
1	Beltran vs. MSC Development, Inc. 2025-01468903	Demurrer to Amended Complaint The general demurrer by Defendants MSC Development, Inc. and Stephen Patric Silva (collectively, “Defendants”) to the three causes of action alleged in the First Amended Complaint (“FAC”) filed by Plaintiffs Jesus Beltran, Jaime Romero, and Brandie Beltran (collectively, “Plaintiffs”) is overruled in part and sustained in part with leave to amend. As an initial matter, the Court notes Defendants’ proofs of service for their demurrer, supporting declaration, and reply did not include the server’s email address. (Code Civ. Proc., ¶ 1013b, subd. (b)(1).) The Court reminds the parties of their obligation to comply with CCP section 1013b when electronically serving documents. Statute of limitations Defendants demur to all three causes of action on the ground that they are time-barred. “In order for the bar of the statute of limitations to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred.” (<i>Marshall v. Gibson, Dunn & Crutcher</i> (1995) 37 Cal.App.4th 1397, 1403.) The parties do not dispute that the three year statute of limitations under CCP section 338 applies to the first cause of action for rescission and restitution. Plaintiffs contend section 337.15 also applies to this cause of action, but that the shorter time limit in section 338 applies. (<i>Liptak v. Diane Apartments, Inc.</i> (1980) 109 Cal.App.3d 762, 769.) The applicable statute of limitations is CCP section 337, subdivision (c), which provides a four year statute of limitations for an action based on upon the rescission of a written contract. Section 337, subdivision (c) provides as follows:

		An action based upon the rescission of a contract in writing. The time begins to run from the date upon which the facts that entitle the aggrieved party to rescind occurred. Where the ground for rescission is fraud or mistake, the time shall not begin to run until the discovery by the aggrieved party of the facts constituting the fraud or mistake. Where the ground for rescission is misrepresentation under Section 359 of the Insurance Code, the time shall not begin to run until the representation becomes false. The parties do not dispute CCP section 338 applies to the second cause of action for fraud and the third cause of action for negligence. Regardless of which statute of limitations applies, the FAC on its face does not show the claims are time barred. Plaintiffs seek both rescission and damages resulting from Defendants’ alleged fraudulent promises and representations, which form the basis of this cause of action. Accordingly, the four-year statute of limitations in section 337 applies. (<i>See, Ferguson v. Yaspan</i> (2014) 233 Cal.App.4th 676, 683.) “A cause of action for fraud accrues when the aggrieved party discovers the facts constituting the fraud.” (<i>Austin v. Medicis</i> (2018) 21 Cal.App.5th 577, 588.) “The courts interpret discovery in this context to mean not when the plaintiff became aware of the specific wrong alleged, but when the plaintiff suspected or should have suspected that an injury was caused by wrongdoing. The statute of limitations begins to run when the plaintiff has information which would put a reasonable person on inquiry.” (<i>Kline v. Turner</i> (2001) 87 Cal.App.4th 1369, 1374.) The FAC does not show on its face that the three causes of action are time barred. Plaintiffs allege they entered into the purchase agreement on January 21, 2019, Defendants delivered possession of the Subject Property to Plaintiffs on or about April 3, 2019, Defendants knew about the mold infestation prior to the completion of the sale, but did not disclose the mold infestation to Plaintiffs, Defendants covered up the mold infestation, Plaintiffs discovered they were suffering injuries resulting from mold infestation within the last two years, and that Plaintiffs discovered the mold infestation on or about April 3, 2024, and that Plaintiffs removed portions of the coverings which concealed the existing mold due to their children’s ongoing respiratory difficulties and unexplained rashes. (FAC, ¶¶ 6-8, 10-17.)
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		Plaintiffs commenced this action on March 20, 2025. Although Defendants referenced the filing date of the FAC, the action commenced on March 20, 2025. Even without considering the tolling of the statute of limitations by Emergency Rule 9, the FAC is not time barred on its face. Accordingly, the demurrer to the three causes of action on the ground that they are time barred is overruled. Reasonable reliance Defendants also contend Plaintiffs did not allege sufficient facts to show reasonable reliance. Plaintiffs did not address whether they sufficiently alleged reasonable reliance in their opposition. Plaintiffs’ third cause of action appears to allege both false promise and intentional misrepresentation. (FAC, ¶¶ 23 and 24.) “The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (<i>Lazar v. Superior Court</i> (1996) 12 Cal.4th 631, 638.) The essential elements for intentional misrepresentation are (1) a misrepresentation, (2) knowledge of falsity, (3) intent to induce reliance, (4) actual and justifiable reliance, and (5) resulting damage. (<i>Chapman v. Skype Inc.</i> (2013) 220 Cal.App.4th 217, 230-231.) The elements of promissory fraud or fraud in the inducement are (1) the defendant made a promise to the plaintiff, (2) at the time the promise was made, the defendant did not intend to perform the promise; (3) the defendant intended to cause the plaintiff to rely on the promise; (4) the plaintiff reasonably relied on the promise; and (5) the plaintiff was harmed as a result. (<i>Lazar v. Sup. Court</i> (1996) 12 Cal.4th 631, 638-639; <i>Muraoka v. Budget Rent-A-Car, Inc.</i> (1984) 160 Cal.App.3d 107, 119.) Plaintiff may show reliance is reasonable by showing that the matter was material in the sense that a reasonable person would find it important in determining how he or she would act and it was reasonable for the plaintiff to have relied on the misrepresentation. (<i>Hoffman v. 162 North Wolfe LLC</i> (2014) 228 Cal.App.4th 1178, 1194.) A plaintiff’s particular knowledge and experience should be considered in determining whether the reliance upon the misrepresentation or nondisclosure was justified. (<i>Id.</i>; see, <i>Gray v. Don Miller & Associates, Inc.</i> (1984) 35 Cal.3d 498, 503 [“Whether reliance is justified is a question of fact for the determination of the
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		trial court; the issue is whether the person who claims reliance was justified in believing the representation in the light of his own knowledge and experience.”].) Plaintiff did not allege sufficient facts to show reasonable reliance. Demurrer is sustained with 15 days leave to amend. Defendant to give notice. Case Management Conference 11-2-26 at 9:00 a.m.
2	Deharo vs. Kola Hotel, LLC 2024-01419171	Motion for Leave to Amend Plaintiff Almadelia Deharo’s (“Plaintiff”) motion for leave to file amended complaint is granted. Plaintiff moves for an order permitting her to file a proposed second amended complaint. Plaintiff contends the amendments are necessary to “clarify allegations” against newly added defendants, which she alleges are “alter egos” of other defendants, and to add allegations that Defendant Kola Hotel, LLC did not have Workers’ Compensation insurance during the subject incident. Motions for leave to amend pleadings are directed to the sound discretion of the court. “The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading.” (Code Civ. Proc. § 473, subd. (a)(1); see also Code Civ. Proc., § 576 [“Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order”].) The court’s discretion will usually be exercised liberally so as not to deprive a party of the right to assert a meritorious cause of action or defense. The policy favoring amendment is so strong that denial of leave to amend can rarely be justified: “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (<i>Morgan v. Superior Court</i> (1959) 172 Cal.App.2d 527, 530.)

A motion to file an amended pleading must be accompanied by a copy of the proposed amended pleading and state what allegations are proposed to be deleted, or added, if any, and where, by page, paragraph, and line number. (Cal. R. Court 3.1324(a).) Additionally, it must include a supporting declaration explaining: “(1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier.” (Cal. R. Court 3.1324(b).)

Here, the Court finds Plaintiff has substantially complied with Rule 3.1324 by submitting her proposed SAC and a supporting declaration from her counsel explaining the effect of the amendment, why it is necessary and proper et al. Although Defendant Vagabond Inn Corporation opposes the motion on the grounds that the motion “does not adequately explain when [Plaintiff] discovered the alleged facts supporting leave to amend or why she did not seek leave earlier,” the Court does not find this argument to be persuasive.

Defendant Vagabond Inn Corporation also claims that the proposed SAC “fails to plead facts supporting alter-ego, successor-in-interest, or joint-venture liability against the Vista entities.” (Opp’n at pp. 5-7.) The Court does not find this argument to be persuasive, either. As explained in Rutter:

Ordinarily, the judge will *not* consider the validity of the proposed amended pleading in deciding whether to grant leave to amend. Grounds for demurrer or motion to strike are premature. After leave to amend is granted, the opposing party will have the opportunity to attack the validity of the amended pleading. (Cal. Prac. Guide Civ. Pro. Before Trial at ¶ 6:644, emphasis in original.)

Finally, Defendant Vagabond Inn Corporation argues that the “timing and substance of the proposed amendment further support denial of leave,” because “[t]he motion will not be heard until August 3, 2026, and the trial is set for April 19, 2027.... Thus, the proposed amendment would require the parties to investigate and litigate complex corporate liability issues within an already limited pretrial schedule.” (Opp’n at pp. 7-8.) It is not clear that the amendment would delay the current trial date, given the discovery that Plaintiff has already completed regarding her proposed amendment. However, to the extent a trial continuance is necessary, the parties may raise that issue with the Court.

		Plaintiff shall file her Second Amended Complaint by 08/14/26 and serve it in compliance with the Code. Plaintiff is ordered to give notice of the ruling. CMC set 11-2-26 at 9:00 a.m.
3	Doe vs. Anaheim Elementary School District 2025-01498911	Demurrer to Complaint / Motion to Strike (1) DEMURRER Defendant Anaheim Elementary School District’s (“AESD”) demurrer to Plaintiff Jane Ark Doe’s Complaint is overruled. First, Defendant’s demurrer is untimely. In addition, it failed to meet and confer prior to filing its demurrer pursuant to Code Civ. Proc., § 430.41. Defendant was served with the Complaint on 12/4/25. (ROA 14.) The demurrer was filed and served on 3/2/26, well past the initial 30-day deadline and the subsequent automatic 30-day extension pursuant to § 430.41.) In Defense counsel’s declaration filed on 1/2/26 regarding the automatic 30-day extension, he acknowledges both that he is required to meet and confer with Plaintiff’s counsel and also that the new deadline for filing Defendant’s motions would be on February 4, 2026. (ROA 25, Kostrenich Decl., ¶¶ 5-8.) Yet without explanation for the lateness or the failure to meet and confer, Defendant did not file its demurrer until nearly one month later, on March 2, 2026. No <u>timely</u> reply brief was filed offering any explanation for these procedural defects. The Court has discretion to either consider the demurrer, or overrule the demurrer because it is untimely. (See <i>Jackson v. Doe</i> (2011) 192 Cal.App.4th 742, 749 (demurrer was only filed 8 days after the expiration of the 30-day deadline).) Because Defense counsel knowingly filed and served the demurrer late – 26 days after the deadline that was already extended once – the Court will exercise its discretion to overrule the demurrer on this ground. The deadline was extended by statute due to Defendant’s admitted inability to meet and confer; and yet, Defendant still

proceeded in filing its demurrer late, without meeting and conferring despite having almost 60 days to do so.

The Court additionally finds that the demurrer lacks merit, as set forth below.

1st-4th causes of action for negligence (negligence; negligent supervision; negligent hiring/retention; and negligent failure to warn, train or educate)

Defendant first argues that because the school where Plaintiff went was a charter school, it cannot be liable for Plaintiff's injuries while there. This is not supported by legal authority.

Defendant cites to *Today's Fresh Start, Inc. v. Los Angeles Cnty. Off. of Educ.* (2013) 57 Cal. 4th 197, and admits that charter schools are subject to public oversight, as chartering authorities are required to monitor schools' fiscal condition and academic performance and are authorized to investigate whenever grounds for concern arise. (Ed. Code, §§ 47604.32, 47604.33, 47604.4, 47604.5, 47605, subd. (k), 47607, subd. (a).) (*Today's Fresh Start, Inc. v. Los Angeles Cnty. Off. of Educ.* (2013) 57 Cal. 4th 197, 206.)

Plaintiff alleges sufficient facts to support her negligence-based causes of action.

In particular, Plaintiff alleges in the Complaint that AESD "was the primary entity owning, operating, and controlling Vibrant Minds Charter School" and had "decision-making power over Vibrant Minds Charter School, and its activities and behavior of its employee and agent RANDY ROMAN." (Complaint, ¶ 5)

Plaintiff alleges AESD was vicariously liable for the actions of its employees, including Defendant Roman. "While public entities cannot be held directly liable for common law negligence, they can be held vicariously liable for the negligence of their employees acting within the scope of employment." (*Gibbs v. County of Humboldt* (2026) 120 Cal.App.5th 565, 574.) In addition, a school district can be vicariously liable for its employees' ineffective supervision. (See *Cleveland v. Taft Union High School Dist.* (2022) 76 Cal.App.5th 776, 799.)

Plaintiff also adequately alleges that Defendant had actual or constructive knowledge of Roman's improper conduct. (See *Roe v. Hesperia Unified School District* (2022) 85 Cal.App.5th 13, 26 (court held that "school administrators have a duty to protect students from

sexual abuse by school employees, even if the school does not have actual knowledge of a particular employee's history of committing, or propensity to commit, such abuse.").

In ¶¶ 29-31 of the Complaint, Plaintiff alleges that were reports of sexual abuse or misconduct involving Defendant Roman, which were ignored, as well as other red flag behavior.

These allegations support constructive notice and foreseeability at the pleadings stage.

5th cause of action for sexual harassment and abuse in educational setting, Ed. Code, § 220

Ed. Code, § 220 provides that “[n]o person shall be subjected to discrimination on the basis of disability, gender, gender identity, gender expression, nationality, race or ethnicity, religion, sexual orientation, or any other characteristic that is contained in the definition of hate crimes set forth in Section 422.55 of the Penal Code, including immigration status, in any program or activity conducted by an educational institution that receives, or benefits from, state financial assistance, or enrolls pupils who receive state student financial aid.”

Defendant again argues that Plaintiff fails to sufficiently plead actual or constructive knowledge of the harassment or abuse, which is required to hold AESD liable.

For the same reasons stated above with respect to the 1st-4th causes of action, the fifth cause of action is adequately pled.

6th cause of action for Intentional Infliction of Emotional Distress

Plaintiff alleges that “Defendants’ conduct toward Plaintiff, as described herein, was outrageous and extreme,” in allowing Defendant Roman to have access to students and failing to supervise and prevent his wrongful acts. (Complaint, ¶¶ 91-93.)

Defendant argues that this cause of action cannot be asserted against a public employee as it is a common law tort, inapplicable to a public entity or its employees, as there must be a proper statutory basis imposing a duty.

Gov. Code, § 815.2 provides that a public entity may be held liable for injury proximately caused by an act or omission of its employee(s).

While Plaintiff cannot assert direct liability against Defendant AESD (that is not based on a specific statute), it can allege vicarious liability; i.e., that Defendant is vicariously liable for the actions of its employees which may or may not constitute intentional infliction of emotional distress.

In ¶ 5 of the Complaint, Plaintiff alleges, “Defendant purposely conducts substantial educational business activities in the State of California, and was the primary entity owning, operating, and controlling Vibrant Minds Charter School and the activities and behavior of its employees, agents, and all other personnel and employees, including supervisory personnel assigned to Vibrant Minds Charter School. Plaintiff is also informed and believes that Defendant owns, controls, and has decision-making power over Vibrant Minds Charter School, and its activities and behavior of its employee and agent RANDY ROMAN, and supervisory panel assigned to Vibrant Minds Charter School.”

These are adequate vicarious liability claims.

7th cause of action for sexual harassment pursuant to Civ. Code, § 51.9

Civil Code section 51.9 provides a cause of action for sexual harassment against a “person” who is in a “business, service, or professional relationship” with the plaintiff. (Civ. Code, § 51.9(a)(1).) The statute identifies a nonexclusive list of persons with whom a relationship may exist, including physicians, landlords, and teachers. (*Id.*, subd. (a)(1)(A)–(I).) Damages are “awarded as provided by subdivision (b) of [Civil Code] Section 52.” (Civ. Code, § 51.9(b).)

Defendant argues that it cannot be held liable because it is not a “person.”

In *Thomas v. Regents of University of California* (2023) 97 Cal. App. 5th 587, the court held that a public entity may be held vicariously liable for sexual harassment under Civil Code § 51.9 based on a theory of ratification and reversed the trial court’s sustaining of UC Berkeley’s demurrer. “An employer’s “failure to investigate or respond to charges that an employee has committed an intentional tort” or “failure to discharge the employee may be evidence of ratification” by the employer.” (*Thomas v. Regents of University of California* (2023) 97 Cal.App.5th 587, 619.)

Thus, it would seem that based on *Thomas*, § 51.9 can be applied to public entities under a ratification theory.

Here, the Complaint alleges that AESD and Vibrant Minds received complaints about Roman and observed red flags but intentionally ignored them and retained him in employment. (Complaint, ¶¶ 29-31, 102). At the pleadings stage, this is sufficient.

(2) MOTION TO STRIKE

Defendant Anaheim Elementary School District's ("AESD") motion to strike portions of Plaintiff Jane Ark Doe's Complaint is denied.

As with its demurrer, Defendant's motion to strike is untimely. In addition, it failed to meet and confer pursuant to Code Civ. Proc., § 435.5.

Defendant was served with the Complaint on 12/4/25. (ROA 14.) The motion to strike was filed and served on 3/2/26, well past the initial 30-day deadline and the subsequent automatic 30-day extension pursuant to § 435.)

In Defense counsel's declaration filed on 1/2/26 regarding the automatic 30-day extension, he acknowledges both that he is required to meet and confer with Plaintiff's counsel and also that the new deadline for filing Defendant's motions would be on February 4, 2026. (ROA 25, Kostrenich Decl., ¶¶ 5-8.)

Yet without explanation for the lateness or the failure to meet and confer, Defendant did not file its motion until nearly one month later, on March 2, 2026. No timely reply brief was filed offering any explanation for these procedural defects.

Again, because Defense counsel knowingly filed and served the motion to strike nearly 30 days late, the motion is denied.

The Court alternatively/additionally denies the motion to strike on the merits.

Defendant moves to strike ¶ 12 (alter ego allegations), ¶ 13 (agency and ratification allegations), Plaintiff's prayer for statutory damages, and Plaintiff's prayer for attorney fees from the Complaint.

Defendant first argues that because it is a public entity and not a for profit enterprise like a corporation, it cannot be subject to alter ego liability. This is not supported by the law. In *Cam-Carson, LLC v. Carson Reclamation Authority* (2022) 82 Cal.App.5th 535, 548, the court held that "the alter ego doctrine may be applied to a government

entity in a case where the facts justify an equitable finding of liability.” Defendant states similar arguments with respect to joint venture or agency allegations. Notwithstanding the viability of these claims, Defendant does not move to only strike these particular words from the Complaint. Defendant moves to strike entire paragraphs. A finding that one term within those paragraphs is improper (e.g., joint-venturers, or shareholders) does not justify striking the entire paragraph, especially when Plaintiff uses the conjunctive “or” indicating that she is not necessarily claiming all Defendants were all of these things.

Plaintiff alleges liability based on ratification in ¶ 13 of the Complaint. This is sufficient at the pleading stage. There is no legal authority that holds that a school district cannot have ratified improper conduct resulting in its liability.

With respect to the prayer for statutory damages, Plaintiff requests “any appropriate statutory damages.” (Complaint, Prayer, ¶ 3.) Defendant does not show how this request is irrelevant, false or improper. Plaintiff does not appear to be requesting punitive damages against Defendant AESD.

Plaintiff requests “attorney’s fees pursuant to California Code of Civil Procedure sections 1021.4, 1021.5, et seq., 52, et seq., or as otherwise allowable by law” in the prayer for relief, ¶ 6.

Plaintiff’s 7th cause of action is based on Civil Code, § 51.9. Specifically, Subd, (a)(3)(b) states that damages shall be awarded pursuant to § 52(b) which does provide for attorney fees.

Thus, while Plaintiff’s reference to other statutes may not be supported by the allegations, Plaintiff’s prayer for attorney fees based on Civ. Code, § 52 et seq., is not improper, and thus the general attorney fee request should not be stricken.

Defendant is ordered to answer within 30 days notice of this ruling.

Plaintiff shall give notice of both rulings.

Case Management Conference

11-2-26 at 9:00 a.m.

4	Gill vs. FCA US LLC 2025-01492739	Demurrer to Amended Complaint / Case Management Conference Continued to 8/17/26
5	Park vs. General Motors LLC 2023-01364797	Motion for Attorney Fees Plaintiffs Peter Park and Safety Zone Enterprises, LLC's ("Plaintiffs") Motion for Attorney's Fees, Costs, and Expenses is granted. Plaintiff is awarded \$22,261, in reasonable attorneys' fees, and \$1,117.43, in costs and expenses, against Defendant General Motors, LLC ("Defendant"). <u>Procedural Issues</u> Defendant contends this motion is untimely. (Opp'n at pp. 3-4, citing <i>Hatlevig v. General Motors LLC</i> (2026) 118 Cal.App.5th 644.) The Court finds <i>Hatlevig</i> is distinguishable in critical respect; and, that Plaintiffs' deadline to file the fee motion had not been triggered by the filing of notice of (conditional) settlement. <u>Merits</u> Civil Code section 1794(d) provides: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." Further, Plaintiff's right to seek an award of attorneys' fees is a term of the CCP section 998 offer, here. To determine reasonable attorney's fees, the court should consider the nature of the litigation, its difficulty, the amount involved, the skill required and employed in handling the matter, the attention given, the success of the attorney's efforts, the intricacies and importance of the litigation, the labor and necessity for skilled legal training and ability in trying the cause, and the time consumed. (<i>Church of Scientology v. Wollersheim</i> (1996) 42 Cal.App.4th 628, 659.) As to the reasonableness of the hours, "trial courts must carefully review attorney documentation of hours expended; 'padding' in the form of inefficient or duplicative efforts is not subject to compensation." (<i>Ketchum v. Moses, supra</i>, 24 Cal.4th at p. 1132.) "In determining a fee's reasonableness, the court may also consider whether the motion itself is reasonable, both in terms of (1) the amount of fees requested

		and (2) the credibility of the supporting evidence.” (<i>Guillory v. Hill</i> (2019) 36 Cal.App.5th 802, 811.) The court may make a downward adjustment if the billing entries are vague, “blockbilled,” or unnecessary. (<i>569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.</i> (2016) 6 Cal.App.5th 426, 441.) It is within the court’s discretion to decide which of the hours expended by the attorneys were “reasonably spent” on the litigation. (<i>Meister v. Regents of Univ. of California</i> (1998) 67 Cal.App.4th 437, 449.) A trial court has broad discretion to determine the amount of reasonable attorney’s fees, as an experienced trial judge is in the best position to decide the value of professional services rendered in court. (<i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095.) Based on the supporting papers submitted by Plaintiffs, the Court finds Plaintiffs reasonably incurred \$22,261 in attorneys’ fees. The Court finds the billable rates to be reasonable and within the prevailing rate in the community for similar work. (<i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095.) However, Plaintiffs cannot recover for “noncompensable” tasks that involved purely clerical or secretarial tasks. (See <i>Collins v. City of Los Angeles</i> (2012) 205 Cal.App.4th 140, 159.) Accordingly, the Court reduced the fees requested by \$1,742. The Court declines to tax the costs. Defendant did not file a timely motion to strike or tax costs. (Cal. R. Ct. Rule 3.1700(b)(1).) Moreover, the cost items at issue (e.g., jury deposit, service of process and e-filing fees) are recoverable as reasonable costs and expenses. (See Code Civ. Proc., § 1033.5, subd. (a)(1), (a)(4), (a)(14).) Plaintiff shall give notice of the ruling.
6	Peralez vs. Skytower Aviation Services, Inc. 2024-01373030	Motion for Discovery / Motion to Compel Answers to Form Interrogatories / Motion to Compel Production /Motion to Deem Facts Admitted Defendant Bradley Young’s (“Defendant”) motions to compel Plaintiff Mayra Peralez’s (“Plaintiff”) responses to form interrogatories, set one, special interrogatories, set one, and requests for production of documents, set one, are granted. Defendant’s motion to deem requests for admission, admitted, shall be granted unless Plaintiff serves Code-compliant responses prior to the hearing.

A propounding party may move for an order compelling responses to interrogatories at any time “[i]f a party to whom interrogatories are directed fails to serve a timely response.” (Code Civ. Proc., § 2030.290, subd. (b).) By failing to serve timely responses, Plaintiff waived “any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product.” (Code Civ. Proc., § 2030.290, subd. (a).)

A propounding party may move for an order compelling responses to a demand for inspection at any time “[i]f a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response.” (Code Civ. Proc., § 2031.300, subd. (b).) By failing to serve timely responses, Plaintiff waived “any objection to the demand, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010).” (Code Civ. Proc., § 2031.300, subd. (a).)

Lastly, a propounding party may move for an order to deem the truth of any matters specified in the requests be deemed admitted “[i]f a party to whom requests for admission are directed fails to serve a timely response.” (Code Civ. Proc., § 2033.280, subd. (b).) By failing to serve timely responses, the party to whom requests are directed “waive[s] any objection to the requests, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010).” (Code Civ. Proc., § 2033.280, subd. (a).)

Here, Defendant proffers evidence showing he served the written discovery on Plaintiff; and, that Plaintiff failed to serve timely responses. Plaintiff has not opposed the motions or shown that responses have since been served. Accordingly, the Court orders Plaintiff to serve verified responses, without objections, to Defendant’s first sets of form interrogatories, special interrogatories, and requests for production of documents, within 14 days of the notice of ruling.

Unless substantially Code-complaint responses are served before the hearing, the Court intends to grant the motion to deem requests for admission admitted, and to deem the matters in Defendant’s first set of requests for admission, against Plaintiff, admitted.

In connection with these motions, Defendant Young is awarded reasonable sanctions in the amount of \$635 per motion, for a grand total of \$2,549 in monetary sanctions, against Plaintiff Peralez. (Code Civ. Proc., §§ 2023.010, 2023.030, 2033.280, subd. (c).) The

		sanctions are payable to Defendant's counsel, Stone & Sallus, LLP, within 30 days. Defendant shall give notice of the ruling.
7	Popal vs. Sajjadian 2024-01384261	Motion for Summary Judgment and/or Adjudication The court will hear argument from the parties.
8	Rivera vs. Marinescu 2025-01462125	Motion to Appear Pro Hac Vice The application of Ben Martin for admission <i>pro hac vice</i> as counsel for Plaintiff Roseanne Rivera is granted. Plaintiff shall give notice.
9	Thomas Vogelee & Associates, APC vs. Kern River Corridor Endowment and Holding Co., 2025-01491400	Motion for Summary Judgment and/or Adjudication On defendant Kern River Corridor Endowment and Holding Co., Inc.'s motion for summary judgment on the complaint of plaintiff Thomas Vogelee & Associates, APC, the court is inclined to continue the hearing pursuant to Code of Civil Procedure section 437c(h) for Plaintiff to conduct and complete discovery as described in the Lewis Declaration . The court will hear from counsel on this, and on whether the trial should be continued as well. Code of Civil Procedure section 437c(h) states that "[i]f it appears from the affidavits submitted in opposition to a motion for summary judgment . . . that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just." The decision to grant or deny a continuance request under section 437c(h), is vested in the trial court's discretion. <i>Braganza v. Albertson's LLC</i> (2021) 67 Cal.App.5th 144, 152 (citation omitted). Continuance requests under section 437c(h), are to be liberally

		granted. <i>Id.</i> “[T]he interests at stake are too high to sanction the denial of [such] a continuance [request] without good reason.” <i>Frazee v. Seely</i> (Fourth Dist. Div. 3 2002) 95 Cal.App.4th 627, 634.) These interests include the importance of deciding cases on their merits rather than on procedural deficiencies. <i>Braganza</i>, 67 Cal.App.5th at 152 (citation omitted). Here, Plaintiff’s counsel has identified specific discovery that Plaintiff seeks in order to make its case but which it has been deprived of. [See Lewis Decl. (ROA #129).] Counsel points to specific written discovery for which it is seeking further responses from Defendant. [Lewis Decl., ¶¶ 3-12 and Exs. 3-6.] He also describes being stymied in his attempt to take the depositions of Fallgatter and Belli, the Board member who signed the resolution approving the settlement negotiated by Plaintiff (among other things). [Lewis Decl., ¶¶ 13-26.] Where a continuance is not mandatory under section 437(h), the court must nevertheless determine whether the party requesting the continuance has established good cause for a continuance. <i>Lerma v. County of Orange</i> (2004) 120 Cal.App.4th 709, 716. The court’s discretion is to be exercised liberally, considering the following factors: length of time the case has been pending, time the requesting party had to oppose the motion, the proximity to the trial date, whether the continuance motion could have been made earlier, whether there were prior continuances for the same purpose. Cal. Prac. Guide, <i>Civil Proc. before Trial</i>, § 10:208 -208.1 and cases cited there. <i>See also Hamilton v. Orange County Sheriff’s Dept.</i> (2017) 8 Cal.App.5th 759, 765 (reversing summary judgment and order denying request for continuance stipulated to by moving party because, while opposing party did not meet 437c(h) requirements he showed good cause despite not being fully diligent). To the extent the information sought by Plaintiff’s counsel is relevant, he has made the required showing for a continuance under Code of Civil Procedure section 437c(h). Defendant argues that the information sought by Plaintiff’s counsel is <i>not</i> relevant. Rather than rejecting evidence sight unseen, however, the court is inclined to allow the discovery requested and judge the relevance of the evidence when it is before the court. The court will hear from the parties on further calendaring.
10	Galindo vs. Sosoatu	1. Motion to Strike Portions of Complaint 2. Case Management Conference

	2025-01536978	Off Calendar
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